

15. DRAFT ORDINANCE – UTILITY SCALE SOLAR PROJECTS

Attached for your reference, please find a memorandum from Mrs. Lewis transmitting the draft Utility Scale Solar Projects ordinance. The Planning Commission is seeking feedback from the Board in a joint meeting before they advertise it for public comment.

This draft ordinance is the culmination of a year of study by the Planning Commission and is largely based upon Caroline's County's ordinance, prepared with assistance from Gentry Locke Attorneys.

Mrs. Lewis's memo includes a summary of the important points.

The current moratorium expires September 10, 2022; if the Board intends to enact ordinance changes prior to the expiration of the moratorium, the Planning Commission will need to schedule its public hearing no later than July 14.

DIRECTION REQUIRED: We are open to the Board's direction on the timing of the joint meeting.



**DEPARTMENT OF COMMUNITY DEVELOPMENT
PLANNING - BUILDING INSPECTIONS – ZONING**

MEMORANDUM

TO: Board of Supervisors
Michael Johnson, County Administrator
FROM: Beth Lewis, AICP, Planning Director
DATE: March 14, 2022
RE: Draft Utility Scale Solar Project ordinance

After a year of study, the Planning Commission is pleased to provide the Board of Supervisors their draft of an ordinance to replace the current Utility Scale Solar Project Ordinance, Article XXII of the Southampton County Code. They seek the Board's review and comment, and ask that they be afforded a time to meet with the Board to discuss the ordinance prior to the required Planning Commission public hearing being scheduled.

The Planning Commission was introduced to Scott Foster, with the firm Gentry Locke Attorneys in Richmond. Mr. Foster worked with Caroline County to update that County's utility scale solar regulations with a more stringent ordinance. The Southampton County Planning Commission chose to use Caroline County's ordinance as a base upon which to build Southampton County's ordinance. A short summary of the important points follows:

Sec. 18-621 – The stated purpose of the ordinance is protecting active farm and forested land, while providing for limited utility scale solar development.

Sec. 18-624 – The minimum project size is 20MW and the maximum size is 100MW. The total land area for utility scale solar projects is limited to 1% of the County's land area, approximately 3,850 acres. The existing Southampton Solar project occupies 1,418 acres of that already. The ordinance requires a mix of farm and forested land, based on the ratio of those lands at the time of the application.

Sec. 18-626 – All projects must be at least one (1) mile from the corporate limits of any town or city. Any land in a Voluntary Agriculture and Forestal District must be withdrawn from the District prior to submittal of an application, and all siting agreements must be approved by the Board of Supervisors before any application is submitted as well.

Sec. 18-627 – Substations or connector stations must be 500 feet, and inverters and transformers must be 250 feet, from existing dwellings, schools, places of worship, State Scenic Rivers, and rights-of-way.

Sec. 18-628 - Landscape and construction management plans are required.

Sec. 18-629 – Standards for landscaping of the exterior buffer areas are provided, including berms along rights-of-way and property in residential use. Timing of the landscaping, and the use of natural buffers and native and pollinator species is provided. Bonding for the landscaping is provided. Clear-cutting and the removal of topsoil from the site is discussed.

Sec. 18-630 – New and/or upgraded electrical interconnections and powerlines shall be installed underground unless approved by the Board of Supervisors at the time of the issuance of a Conditional Use Permit. No project shall be closer than five (5) miles from any other such project. The required community meeting held by the potential developer must be no more than six (6) months prior to the submittal of a complete application.

Sec. 18-631 – Decommissioning shall be completed within twelve (12) months of commencement. The provided decommissioning bond, submitted prior to site plan approval, must provide for 100% of the decommissioning costs, with no credit given for salvage value. A review of the sufficiency of that bond shall be provided by the applicant every five (5) years, and every bond or recalculation shall include \$1,000 administrative fee for the County. The site plan, the siting agreement, and the decommissioning plan shall all be recorded with the Clerk of the Court. The County may enter the property up to three (3) times per year for unannounced inspections.

Sec. 18-635 – Construction shall commence within twelve (12) months of approval of the Conditional Use Permit, and the Board of Supervisors may grant one twelve-month extension.

The Planning Commission awaits a meeting with the Board of Supervisors. They understand the Board may wish to wait until a new County Administrator is on board. Should a meeting be scheduled, any amendments to the proposed ordinance coming from the meeting will be added and a public hearing scheduled at the earliest possible date.

Thank you for your attention.

Article XXII. - Utility Scale Solar Project for Southampton County
DRAFT

Sec. 18-621. - Purpose and Intent

The purpose and intent of the Utility Scale Solar Project regulations is to protect active, viable farm and forested land while permitting the installation of utility scale solar energy projects in limited areas throughout the County, encouraging the use of brownfields and other marginally-productive land.

Sec. 18-622. - Definitions

- *Applicant* means the person or entity who submits an application to the locality for a permit to install a solar energy project under this article.
- *Disturbance zone* means the area within the site directly impacted by construction and operation of the solar energy project.
- *Integrated PV* means photovoltaics incorporated into building materials, such as shingles.
- *Operator* means the person responsible for the overall operation and management of a solar energy project.
- *Owner* means the person who owns all or a portion of a solar energy project.
- *Photovoltaic or PV* means materials and devices that absorb sunlight and convert it directly into electricity.
- *Rated capacity* means the maximum capacity of a solar energy project based on the sum total of each photovoltaic system's nameplate capacity.
- *Site* means the area containing a solar energy project.
- *Utility scale solar energy project, solar energy project or project* means a renewable energy project that either:
 - (a) Generates electricity from sunlight, consisting of one or more PV systems and other appurtenant structures and facilities within the boundaries of the site; or
 - (b) Utilizes sunlight as an energy source to heat or cool buildings, heat or cool water, or produce mechanical power by means of any combination of collecting, transferring, or converting solar-generated energy; and
 - (c) Does not meet any of the following criteria: has a disturbance zone equal to or less than two acres, is mounted on or over a building or parking lot or other previously disturbed area, or utilizes integrated PV only.

Sec. 18-623. - District Boundaries

The utility scale solar energy project regulations shall apply to all properties seeking a zoning map amendment and/or a Conditional Use Permit to install such a development in the unincorporated portions of Southampton County.

Sec. 18-624. - District Regulations

All Utility Scale Solar Energy Projects shall meet the following district regulations:

1. The minimum rated nameplate capacity of any utility scale solar energy project shall be at least twenty (20) megawatts (MW).
2. The maximum rated nameplate capacity of any utility scale solar energy project shall be no more than one hundred (100) megawatts (MW).
3. The total land area devoted to utility scale solar projects shall be no more than one (1) percent of the area of Southampton County, with the current ratios between farm and forested land being used as determined by information from the Virginia Farm Service Agency and the Virginia Department of Forestry at the time of application.

Sec. 18-625. – Zoning Considerations

Utility scale solar energy projects shall only be permitted in the M-1, Limited Industrial, zoning district with a Conditional Use Permit.

Sec. 18-626. - General District Standards

In addition to the standards contained in Article XVIII, Conditional Use Permits, all applications shall comply with the following standards for a utility scale solar energy project:

1. The subject properties shall be served by an existing electrical transmission/distribution line, so as to not require an extension to connect to the receiving line.
2. Any utility scale solar energy project shall be located in its entirety at least one (1) mile from the corporate limits of any incorporated town or city.
3. The project shall comply with all applicable federal and state regulations.
4. Decommissioning shall be accomplished in accordance with the requirements of Sec. 18-631 of this ordinance and the approved decommissioning plan.
5. Technical/review fees. Applications for utility scale solar energy projects shall require a technical review that will be conducted by a consultant selected by the County. Any fees associated with performance of this review will be paid by the applicant.
6. Should property proposed as part of a utility scale solar energy project be included in a Voluntary Agriculture and Forestal District, a request to withdraw the property from said District shall be submitted and approved in advance of a submittal of a request for a zoning map amendment and Conditional Use Permit to install the proposed project.
7. Any required siting agreement shall be approved by the Board of Supervisors prior to submittal of an application for a zoning map amendment and/or Conditional Use Permit.

The Board of Supervisors may modify the standards of Sec. 18-626 upon application for an approval of a Conditional Use Permit specific to the standard for which a modification is requested, upon a finding by the Board that the applicant has demonstrated that the proposed modification reasonably protects and promotes the public health, safety, and welfare with respect to the application.

Sec. 18-627. - Setbacks

1. Utility scale solar energy projects shall meet the front, side, and rear setbacks of the M-1, Limited Industrial district for the exterior parcel boundaries of the project unless specified otherwise elsewhere in these regulations. Buildings and equipment may cross property lines interior to the utility scale solar project, however, subsequent to development, should properties be removed from the project, perimeter setbacks must be installed on properties remaining within the project.
2. New substations or connector stations shall be set back at least five hundred (500) feet, and inverters and transformers set back at least two hundred and fifty (250) feet, from existing dwellings, schools, places of worship, State Scenic rivers, and rights-of-ways.

The Board of Supervisors may modify the setbacks of Sec. 18-627 as it deems necessary to ensure adequate buffer yards and screening to mitigate the visibility of the utility scale solar energy project from the exterior of the property to residential property, public facilities, places of worship and public rights-of-way and site conditions specific to the project.

Sec. 18-628. - Additional Submission Requirements

In addition to the Submission Requirements of Sec 18-578, the following additional requirements shall be satisfied with the filing of an application for a Conditional Use Permit:

1. Documentation evidencing control over the properties for the intended use, including decommissioning. Sensitive financial or confidential information may be redacted. Power of attorney must be provided if the applicant for the zoning map amendment and/or Conditional Use Permit is not the property owner
2. A narrative describing the proposed utility scale solar energy project, including how it meets the purposes and intent noted in the Comprehensive Plan and this ordinance
3. The intended end user(s) of the electricity generated by the project. No speculative projects will be considered by the Board of Supervisors and Planning Commission.
4. The preliminary site plan and supporting documentation shall demonstrate that the project meets the design and development standards set forth in Article XX of the zoning ordinance. Additionally, the plan shall indicate the following:
 - a) The approximate location and dimension of solar panels, inverters, existing and proposed structures, fencing, property lines, ancillary equipment, transmission lines, vegetation, waterways and streams, and the location of residences within three hundred (300) feet of the perimeter of the facility, buffers, boundaries, and acres of the limits of disturbance
 - b) The amount of energy in megawatts (MW) that the facility is designed to generate in alternating current (AC) and direct current (DC)
 - c) Dimensions, locations, orientation and typical section of the solar energy equipment, and the type of system proposed (i.e. tracking or stationary)
 - d) The materials that are to be utilized (e.g. aluminum, copper, glass, etc.) in the construction of the facility and approximate percentages
 - e) Location of interconnections to any existing or proposed substations or connector stations
 - f) Existing structures on the parcel(s) and occupied structures on adjacent properties that may be affected by the placement of solar panels. Include places of worship, schools, public buildings, and State Scenic rivers
 - g) Parking and access areas, including proposed construction and permanent driveways
 - h) Location of proposed access and utility easements
 - i) A general landscape and buffering plan that demonstrates that the application meets the buffering requirements of Sec. 18-629.
 - j) Demonstration through project siting and proposed mitigation, if necessary, that the project mitigates impacts on the visual character of adjacent properties, designated scenic roads or rivers, or historic properties as designated in the Comprehensive Plan or the Virginia/National Register of Historic Places
 - k) A construction management plan which includes, but is not limited to, the location of staging areas for construction materials and equipment, hours of operation, estimated duration of construction, number and type of vehicles entering and leaving the site, including a traffic impact analysis of same, temporary lighting, anticipated noise and dust generation and corresponding mitigation measures;
 - l) Proof of adequate liability insurance for the project, which shall be maintained throughout the life of the project
 - m) The name and contact information for the owner, who shall be responsible for all aspects of the operation and maintenance of the facility for purposes of compliance with the Conditional Use Permit.

Notwithstanding the approved preliminary site plan, the final site plan may be modified to meet federal, state or local regulations, site design, or engineering requirements provided such modifications do not materially change the approved site plan.

5. A statement signed by the applicant that the electrical utility provider or regional transmission authority has been informed of the applicant's intent to install an interconnected project.
6. A description of the upgrades or improvements to the current electrical grid required to support the proposed solar energy facility and the status of the applicant's application for interconnection to the grid.
7. Stormwater management plan as required by Chapter 13.5 of the Southampton County Code.

Sec. 18-629. - Design and Development Standards

Utility scale solar energy projects shall comply with the following design and development standards:

1. Exterior Buffer Area

Within the required exterior setbacks, a minimum of one-half the setback shall provide a buffer area on all sides of the project, including areas around any new substation or connector station, to any adjacent parcel or public right-of-way. If the adjacent parcel includes a residence, a place of worship, a structure with documented historical significance, a cemetery, or a school, the minimum buffer width shall instead be one hundred (100) feet. Any combination of landscaping, fencing, berms, or natural areas may be used to satisfy this standard as outlined in this section, which shall screen the project from view from the exterior of the property.

The following activities may be permitted within the buffer:

- a) Vehicular access drives which ties into approved access points to the public right-of-way system as determined by VDOT
- b) Landscaping and landscaping features
- c) Security lighting in accordance with Sec.18-630
- d) Fencing in accordance with Sec.18-629(4)
- e) Signage in accordance with Sec 18-629(5)
- f) Utility lines, provided such lines cut through the buffer areas at an angle, as shown on the site plan, to protect the viewshed provided by the buffer
- g) Erosion and sediment control/stormwater management measures

The Board of Supervisors may modify the buffer area as it deems necessary to ensure adequate screening to comply with this standard.

2. Landscaping and Buffering

Fencing abutting public rights-of-way - As part of the conditional use permit application, zoning map amendment request, or site plan approval request, a landscape plan for the perimeter of the project in areas that the required fencing will abut a public right-of-way must be provided. Such plan must provide an intermittent screen along such roadways to reflect the agricultural nature of the surrounding countryside. Plantings at intersections are to reduce the visual impacts of the solar panels and equipment on drivers. Plantings along the public rights-of-way are not meant to completely screen the solar installation, but to break up the impact of the installation on drivers and nearby residents. Four (4) foot tall landscaped berms planted with grass shall be required as necessary abutting all public rights-of-way, with such requirements specifically imposed by the board of supervisors at the time a conditional use permit is issued.

Fencing not abutting public rights-of-way - Plantings in areas that the required fencing will abut residential uses, cemeteries, schools, structures with documented historical significance, places of worship, or State Scenic rivers shall provide an opaque screen of the solar installation to the abutting properties. Such plans shall to the greatest extent possible use native and locally adapted

vegetation. Opaque screening to a height of eight (8) feet within three (3) years of installation must be provided along these areas. If the fence abuts any property in residential use, a four (4) foot tall landscaped berm planted with grass shall be part of the opaque screening.

If landscaping is proposed and/or required to meet the visual screening requirements, plantings shall be installed during the first available planting season following issuance of a land disturbing permit to ensure viability of the plantings, as determined by a Landscape Design Professional. Vegetation to be installed shall be of such size and variety so as to achieve required screening effects within three (3) years of installation.

It is preferred that natural areas be retained to meet some or all of the buffer requirements, provided a Landscape Design Professional determines the existing vegetation is of adequate size and health to meet the screening requirements. Vegetation to be retained for this purpose shall be shown on the site plan, type and size enumerated.

Native vegetation and pollinator species shall be incorporated into landscape plans and natural areas to the extent possible. The planting of non-native plant species is discouraged. If non-native species must be utilized, such planting shall not constitute more than twenty five (25) percent of all new plantings, unless the Landscape Design Professional determines additional non-native plantings are necessary to meet the desired buffering standards. All landscape material must be certified nursery stock, so as to ensure invasive species and insects are not in the material.

The landscape plan shall also include information regarding the grass or ground cover to be installed within the solar installation. Such ground cover or grass is limited in height to twelve (12) inches by Southampton County Code Sec. 10-48. A landscape plan for the installation and maintenance of the plantings, natural areas, and other vegetated areas within the buffer shall be provided, which shall ensure the long-term viability of the buffer area. Invasive species plans and pest management plans specific to the site for both insects and vegetation, prepared by a licensed landscape architect or certified agronomist or equivalent, shall be incorporated into all landscape plans. Such landscape plans shall be approved by the County as part of the site plan review process.

Prior to the issuance of the first land disturbance permit, appropriate surety equal to fifty (50) percent of the cost of the installation of the landscaping for the entire project shall be submitted. Additionally, a \$50,000 landscape bond shall be submitted that remain in effect for the life of the project. Once 100% of the landscaping for the entire project has been installed and verification by the Landscape Design Professional is provided that the landscaping is healthy and meets the mitigation requirement, the fifty (50) percent surety shall be released upon request. However, the \$50,000 landscape bond shall remain in effect for the life of the project. That bond, to be renewed if/when the County needs to pull from it, shall cover landscaping that needs to be replaced, damaged fencing, tall vegetation that needs to be mowed, or complaints of glare from the project from an abutting neighbor, should the owner of the project not accomplish those repairs in a timely manner upon receiving knowledge of the issue. Any dead, diseased, or dying vegetation shall be replaced in accordance with the specification of the maintenance plan in the first planting season after such replanting is required. Annual inspection of the landscaping and ground cover shall be made by a licensed Landscape Architect and a report provided to the Community Development Department.

The Board may determine that further screening improvement may be reduced or are not required based on supporting documentation provided by the Landscape Design Professional.

3. Fencing

Fencing shall be as required by the National Electric Code. It shall be screened from exterior view from occupied adjacent properties and public rights-of-way. Screening may include plantings to mitigate the view of the fence. Breaks in fencing shall be provided to facilitate wildlife movement corridors where necessary to address findings and recommendations of the studies pursuant to Sec. 18-632(1).

4. Grading

Clear-cutting and grading of the development zone shall be prohibited, except in areas where panels, internal paths, and equipment are to be installed. Existing buffer areas must be protected from clear-cutting. The Southampton County Code Ch. 6, Erosion and Sediment Control, shall be adhered to. The use of existing contours shall be utilized to the extent practical. Where grading is necessary because of slopes or other topographic features, slopes exceeding fifteen (15) percent and/or slopes defined as critical slopes by the Virginia Erosion and Sediment Control Handbook, shall not be disturbed. All site development shall be performed in phases so that not more than fifty (50) percent of the land disturbance areas reflected on the site plan shall be disturbed without stabilization at any time. Site specific plans shall be prepared and approved that may limit or phase the amount of disturbed acreage as determined by site characteristics. Topsoil is not permitted to be removed from the property. For purposes of erosion and sediment control, stabilization shall mean the application of seed and straw or mulch to disturbed areas. The applicant shall be responsible for any costs incurred by the County for additional staff and/or third party inspectors for inspection services. If forested land is to be included, the requirements of the Virginia Department of Forestry BMP standards shall be included. Southampton County Community Development may permit selected thinning in areas based upon best management practices and in accordance with the approved landscape plan. The provision shall not be deemed to preclude cutting or thinning necessitated by disease or infestation and recommended by the Virginia Department of Forestry or other qualified professional.

5. Signage

Signage shall be limited to a notification sign placed at each site entrance and at locations along the exterior fence that states (a) the rated nameplate capacity, (b) the name of the project owner, and operator (if different from the owner), (c) the street address of the site, and (d) a 24-hour emergency contact phone number for the operator. Signage is prohibited on solar equipment except as follows: (a) appropriate warning signs and placards; (b) signs required by a federal or state agency; (c) signs that provide a 24-hour emergency contact phone number, and (d) panel manufacturer information and/or other identifier. If the contact information changes, new signage with up-to-date contact information is required.

6. Height

Solar Energy Arrays shall not exceed eighteen (18) feet in height when oriented at maximum tilt, as measured from the ground, and shall be screened to meet the visual buffering requirements at the time of site plan approval. Ancillary non-solar collector equipment and/or structures, including, but not limited to inverters and transformers, may exceed the height limitation of eighteen (18) feet, provided such equipment or structures are not visible from the exterior of the property.

Sec. 18-630. - Additional Requirements

1. Site access shall be designed to mitigate site visibility from the public road, residences, schools,

places of worship, properties on a historic register or listing, and state scenic rivers.

2. Security lighting shall be the minimum necessary for security of the site. All lighting shall be source shielded and downcast to prohibit glare onto abutting properties. The maximum height of any light structure shall not exceed twenty (20) feet along the exterior boundary or within the approved setback/buffer areas and thirty-five (35) feet in the interior. Motion sensitive lighting shall be utilized to the maximum extent possible. Except for site entrances, all lighting shall be internal to the facility.
3. New and/or relocated on-site electrical interconnections and powerlines shall be installed underground unless otherwise approved by the Board of Supervisors with the issuance of the Conditional Use Permit.
4. The project upon completion shall not exceed the noise limitations throughout Southampton County at the exterior boundary of the properties. During construction, noise shall be minimized using acceptable industry practices for back-up alarms that do not emit traditional warning sounds. The hours of operation of post-driving and other construction equipment shall be limited to sunrise to sunset, Monday through Saturday.
5. All solar collection devices shall be located to avoid directing glare or reflection onto adjacent properties and roadways so as to not create a traffic or safety hazard or nuisance to adjacent properties. In the event that glare is identified as an issue after construction, the owner of the solar energy facility, or its assigns, shall prepare and implement a corrective plan of action that is acceptable to the County sixty (60) days after notification of the issue to the owner by the County. The required landscape bond may be utilized by the County to abate the condition should the operator fail to do so.
6. The development area shall not include any area in an identified 100 year floodplain, except as minimally necessary for service utility or access road crossing areas, provided such improvements are permitted in accordance with the Southampton County Code. The development shall comply with Article XIV of the Southampton County Code.
7. All solar photovoltaic (electric energy) projects, shall utilize generally accepted national environmental protection and product safety standards for solar panels and battery technologies such as those developed for existing product certifications and standards; including the National Sanitation Foundation/American National Standards Institute No. 457, International Electro technical Commission No. 61215-2, Institute of Electrical and Electronics Engineers Standard 1547, and Underwriters Laboratories No. 61730-2. Sourcing all equipment from facilities located in the United States is encouraged.
8. No utility scale solar energy project shall be located within five (5) miles of another major solar energy project permitted under this section as measured at the nearest exterior boundary of each project.
9. All Southampton County Fire and Rescue Departments shall be provided emergency response training by the owner or its assigns prior to commencement of commercial operation.
10. Community meeting. Prior to submittal of an application, the applicant shall hold a meeting to inform the community about the planned utility scale solar installation. Said meeting shall be open to the public. Notice of the date, time, and place of the meeting, as well as a contact name

and phone number of the project representative and a summary of the request, shall be delivered by first class mail to all property owners as noted in Southampton County tax records within one (1) mile of the perimeter of the project. Such notice shall be mailed so as to be delivered at least five (5) and no more than twenty-one (21) working days prior to the community meeting. Upon conclusion of the community meeting, a mailing list of property owners notified, a sign-in sheet from the community meeting, an agenda from the meeting, and a written summary of the meeting shall be included with the application. Such meeting shall take place no more than six (6) months prior to complete submittal of an application for a utility scale solar Conditional Use Permit.

The Board of Supervisors may modify the provisions of Section 18-630 provided the Board finds that the amended provisions protect the public health, safety and general welfare.

Sec. 18-631. - Decommissioning

1. A decommissioning plan signed by the project owner and binding upon their successors and assigns, who shall be responsible for decommissioning the project. Elements shall include, but are not limited to:
 - (a) The anticipated life of the project.
 - (b) An equipment and materials analysis that includes deconstruction, reclamation, salvage, recycling, transportation, labor and estimates for the amount and types of materials to be salvaged, including contingencies in the event that the local salvage market is inundated and disposal of materials is required outside of the local market area.
 - (c) The estimated decommissioning costs in current dollars, based upon the equipment and materials analysis above, based upon the recycling market for materials at the time of the preparation of the estimate.
 - (d) The method for ensuring that funds will be available for decommissioning and restoration.
 - (e) The anticipated timeline and manner in which the project will be decommissioned and the site restored to agricultural ready. Agricultural ready condition means the property is ready for agricultural/silvicultural use at the beginning of the next growing cycle.
2. Decommissioning shall be required following a continuous period of twelve (12) months of the cessation of use for the electrical power generation or revocation of the special exception permit, whichever shall first occur. The owner shall have not more than ~~twelve~~ (12) months to complete decommissioning of the solar energy facility.
3. Decommissioning shall include removal of all solar panels, footers, foundations, structures, cabling, electrical components, conduit, and any other associated facilities and equipment as described in the decommissioning plan, both above and below the surface of the Earth.
4. All fences, access roads or other non-utility improvements shall be removed unless an executed agreement is provided to the Community Development Department indicating that the property owner agrees for these improvements to remain.
5. Prior to site plan approval, the applicant shall provide the County with a performance guarantee in the form of a bond, irrevocable letter of credit and agreement, or other financial security acceptable to the County in the amount of one-hundred (100) percent of the estimated decommissioning cost, with no allowance for salvage value. Estimates shall be ~~done~~ by an engineer licensed to practice in

the Commonwealth of Virginia. An administrative fee in the amount of \$1000 shall be paid with the delivery of the estimate or any recalculation thereof or with the recalculation of the surety.

6. A revised engineer's estimate of probable cost of decommissioning shall be submitted for review and approval every five (5) years in the same manner as the initial submission, and the surety shall be adjusted appropriately. If at any time the County has questions or concerns about the decommissioning cost estimate, then the County may prepare its own decommissioning cost estimate with the cost to be borne by the owner(s) of the facility.
7. The decommissioning plan shall be referenced in either the site plan, the Siting Agreement or both as applicable. The site plan and any Siting Agreement shall be recorded in the land records of the Clerk of the Circuit Court of Southampton County. The instrument shall identify the street addresses, parcel number(s), owners of record, deed book and page number, and identify the location and availability of the approved decommissioning plan. Proof of recordation shall be provided to the Director of the Community Development Department prior to site plan approval.
8. Project Owners and any landowners on which a major solar facility is located, in applying for a site plan approval, acknowledge the County's ability to enter their property to effectuate decommissioning pursuant to Va. Code §15.2- 2241.2.
9. Project Owners and any landowners on which a utility scale solar project is located acknowledge that nothing herein shall limit other rights or remedies available to the County to enforce the obligations of the Applicant, including under the County's zoning powers. The County reserves the right to enter the property up to three (3) times per calendar year for unannounced inspections. In the event of emergencies in which damage to person or property has occurred or is imminent, the right of access by County representatives shall be immediate.
10. Any changes to the ownership of the project shall require an updated plan and surety reflecting same. Southampton County shall be named as additionally insured on bonds/surety/insurance policies.

Sec. 18-632. – Additional Resources required

(1) Environmental resource impact analysis

The Southampton County Comprehensive Plan stipulates that the natural and scenic beauty of the County shall be protected and preserved through the development process. The inventory and analysis requirements contained herein implement that stipulation and are coordinated and compatible with other environmental resource protection measures in this Code including erosion and sediment control, stormwater management, wetland protection, and floodplain management. A natural resources inventory, prepared and submitted in accordance with the provisions established herein, shall be required for all properties seeking a zoning map amendment and/or conditional use permit and/or site plan approval request for a utility scale solar installation and shall be the basis for environmental resource impact analysis and mitigation efforts. The inventory shall meet the following requirements:

- (a) The inventory shall be prepared and certified by a professional qualified to perform environmental inventories. Evidence of the professional qualifications of the person preparing the inventory shall be submitted as a part of the inventory.
- (b) The inventory shall contain a plan sheet that clearly depicts the extent and location of any sensitive or environmentally significant features and areas. For each feature and

area, descriptive information such as: flood plains; tree lines to be impacted (including the limits of clearing and where buffers will be installed); slope percents (with topography shown at five-foot contour intervals); wetlands classification; groundwater to be impacted (to include ponds, lakes, stream, rivers, etc.); soil type; habitat (including endangered native plant and animal life); etc. shall be provided.

(c) The applicant is responsible for having a site-specific in-field determination for perennial flow made by a qualified professional. The agent shall confirm the site-specific in-field perennial flow determination. For the purpose of determining whether waterbodies have perennial flow, a state approved, scientifically valid system of in-field indicators of perennial flow must be used.

(d) The inventory shall also contain a narrative element that describes and defines the relative values of the natural resources which are found to be present on the site, including flora and fauna.

(e) Natural resources inventories shall be submitted to the County for review and approval concurrent with the submission of applications for a zoning map amendment, conditional use permit, or site plan approval. The County shall not approve the submitted documents unless the natural features and ecological relationships inherent on the site have been identified as deemed appropriate by the reviewer and plans for avoidance and/or mitigation of environmental impacts are fully incorporated into the proposed plan of development for the district.

Proposed utility scale solar installations shall be planned and undertaken in accordance with the following standards, depending on the type(s) of natural features and resources present on the site

(1) Wetlands delineation shall be performed in accordance with the comprehensive onsite determination method specified in the Federal Manual for Identifying and Delineating Jurisdictional Wetlands, 1987, as it may be amended from time to time.

(2) All construction within flood plain areas shall be in accordance with the requirements of erosion and sediment control chapter of the Southampton County Code and the most recent version of the Virginia Uniform Statewide Building Code and any special requirements of the National Flood Insurance Program applicable to such area.

(3) In areas having excessive slopes or having highly erodible soils, no roads, driveways, structures, or land disturbing activities shall be allowed except where no other practical option exists, as determined by the County, and then, such activities shall be conducted in a manner which does not contribute to increased stormwater run-off velocities or erosion.

(2) Community impact assessment.

An assessment of the impact on the immediate vicinity of the proposed utility scale solar project as well as the greater Southampton County community shall be prepared and submitted to the County with a zoning map amendment and/or Conditional Use permit request and/or site plan approval request. The report shall be prepared by a professional acting within his or her competency, shall be presented in written form and shall analyze in specific terms the probable impact of the project on the vicinity and community over time. Specific attention, as may be appropriate to the individual proposal, should be given but not be limited to the following elements:

(a) Anticipated direct revenues to the county from real estate and other taxes.

- (b) An assessment of the short and long term economic impact of the proposed development. If the development is replacing an existing enterprise, including agriculture and forestry, an assessment of the impact the current enterprise has on the local economy and how the local economy will be impacted by the loss of the existing enterprise.
- (c) An assessment of temporary and permanent employment opportunities to be created by the proposed development.
- (d) Fire, rescue, and law enforcement requirements as compared to existing capacities and facilities.
- (e) Water, sewer and stormwater management needs as compared to existing capacities and facilities to address adequacy of existing utilities, water, sewer, public services and public facilities in the vicinity of the development, as well as public and private improvements both offsite and onsite that are proposed for construction and a cost estimate for providing these improvements.
- (f) Other public and quasi-public facility and service impacts intended to serve the development.
- (g) Socioeconomic changes and impacts to result from the proposed development.
- (h) The budgetary costs to Southampton County both in capital and operating costs of providing services to the proposed development.
- (i) What efforts, if any, are proposed to mitigate the service demands or costs to the County.

(3) Traffic impact analysis

Pursuant to the Code of Virginia, § 15.2-2222.1, a traffic impact analysis shall be prepared and submitted to the agent at the time of request for a zoning map amendment and conditional use permit for a utility scale solar project. The traffic impact analysis shall include sufficiently detailed information to reasonably determine the impact of the proposed development on the existing and planned transportation network and systems and shall be prepared in accordance with the relevant provisions of the zoning ordinance. The traffic impact analysis shall include all pertinent information relative to the proposed development phasing and shall be correlated with that phasing.

All zoning map amendment and conditional use permit requests must include estimated driveway traffic volumes based on the anticipated traffic generation, using the Trip Generation Manual (Institute of Transportation Engineers, Seventh Edition or as it may be amended from time to time). Where only a portion of the entire property is being used, the traffic projections for the balance of the land remaining to be developed shall be based on the most traffic-intense uses permitted under existing zoning. The applicant shall provide driveway (street intersection) volume data for 24-hours, AM peak hour, PM peak hour, and peak hour of use for weekday and weekend. In addition, the development proposal must show the existing volume of adjacent streets.

The submitted traffic impact analysis shall contain the information and analysis and be in the format as required in 24 VAC 30-155, as amended.

All existing or planned intersections, commercial entrances, median breaks, pavement markings, driveways, or other roadway features potentially affecting traffic flow located within five hundred (500) feet of the proposed development as well as all intersections and driveways internal to the development shall be considered and either shown or clearly noted on a scaled plan submitted with traffic impact statement.

The developer shall be responsible for paying all review fees required by the Virginia Department of Transportation for the review of traffic impact statements. Such fees shall be submitted by check paid directly to the Virginia Department of Transportation.

(4) Historic resource impact analysis.

In accordance with the objectives of the adopted comprehensive plan and specifically with § 15.2-2306, Code of Virginia, the purpose of the historic resources impact analysis is to protect the historic cultural resources of the county by ensuring that historic buildings and archeological sites are acknowledged and incorporated into the overall design of a utility scale solar installation.

Specifically, these provisions apply to all development in areas of the county which have or are predicted to have historic and archaeological resources present on the site. However, because of the high potential that any land in the county could contain resources of sufficient historical value as to warrant additional study, any utility scale solar installation comprising twenty-five (25) acres or more in any location in the county shall prepare and submit the studies and reports in the manner specified below. The historic resource impact analysis for a proposed utility scale solar installation should identify historic resources to be impacted including, but not limited to locally identified historic areas, sites and structures, all historic places designated by the state, and all historic places designated by the National Register of Historic Places.

Special requirements for archaeological sites and structures are as follows:

(1) *Archaeological sites.*

a. A Phase I archaeological study, as defined by the Virginia Department of Historic Resources in Guidelines for Archaeological Investigations in Virginia Department of Historic Resources (1996, as amended), shall be undertaken for all developments described above.

b. If, based on the "Guidelines for Preparing Archaeological Resource Management Reports" of the Virginia Department of Historic Resources, the Phase I study indicates the desirability for additional studies, a Phase II (as defined by the Virginia Department of Historic Resources, above) and, if warranted, a Phase III (as defined by the Virginia Department of Historic Resources, above) study of the site shall also be completed. The recommendations of such studies shall be incorporated into the plan of development and any clearing, grading, or construction activities.

c. Alternatively, instead of performing additional studies, the archaeological resource may be preserved in place provided, whoever, that the county shall require that sufficient study analysis are performed which shall determine the location al extent of the resource so as to ensure its future accessibility.

(2) *Architectural structures.*

a. The Secretary of the Interior's Standards for the Rehabilitation and Guidelines for Rehabilitating Historic Buildings shall be used in performing appropriate architectural studies or analyses of standing structures.

b. In the case of demolition of historic standing structures, the county may require that a set of measured drawings be prepared by a licensed architect and filed with the county and the state historic preservation office prior to demolition occurring.

(3) All archaeological and architectural studies shall be submitted to the county for review and approval and shall be made a part of any development plan approval.

Upon written request from the developer, the Board of Supervisors may waive any of the above requirements for community, environmental, or historic resource analyses deemed not to be

necessary for the proposed project. The Virginia Department of Transportation will analyze the project to determine the need for a traffic impact analysis.

Sec. 18-633. - Ground water monitoring.

Ground water monitoring to assess the level of groundwater contamination shall take place prior to, during, and upon completion of construction of the project throughout the area of the utility scale solar project. Ground water monitoring shall take place every five (5) years of the operation of the project, and upon completion of decommissioning. Results from said monitoring shall be delivered to the Southampton community development department.

Sec. 18-634. - Phasing plan.

As part of the master plan submitted for review in conjunction with a zoning map amendment for a utility scale solar installation, or a request for site plan approval, a phasing plan shall be provided. Such plan shall show in general how the property will develop so as to be able to discern the timing for necessary infrastructure extension. No speculative applications will be accepted.

Sec. 18-635. - Commencement of Construction

Notwithstanding any provisions related to the timing and validity of site plan approvals set forth in the Code of Virginia, construction shall commence within twelve (12) months from the date of approval of the Conditional Use Permit or the Conditional Use Per shall be void. Not less than six (6) months prior to the expiration date of the original Conditional Use Permit, the owner may request a one-time extension from the Board of Supervisors for an additional twelve (12) months to commence construction. The Board of Supervisors may grant the extension, based upon satisfactory evidence that the applicant has proceeded in good faith with the permitting process. In no case shall the permit be extended beyond twenty-four (24) months.